

Data Protection Bill: India's Cyber Black Cat Commando

Data protection is the process of safeguarding important information from corruption, compromise or loss. Its importance increases as the amount of data created and stored continues to grow at unprecedented rates.



India is approaching a huge milestone with respect to having a statutory framework for privacy and data protection. A committee of experts headed by Justice B.N. Srikrishna has submitted its report along with a draft of the personal data protection bill. With emergence of data as a transactional entity in artificial intelligence (AI) applications, business decisions and personal lives, the committee delineates the rights of data principals—to whom personal data relates—and responsibilities of data fiduciaries who decide the purpose and means of processing this data.

Globally, too, there have been interesting developments. The framework on data protection recently implemented in the European Union (EU), that is, General Data Protection

Regulation (GDPR), allows people to reduce the information tracks left behind while surfing the Internet and social media websites, reading news or shopping online. Individuals will now have the rights to confirmation, correction, portability and deletion of data that companies hold on to.

To meet GDPR's requirements, many companies are deploying large teams to refurbish how they give users access to their own privacy settings and to redesign certain products that may have drawn up too much user data.

Japan has passed a data protection law and established an independent online privacy board. Japan and the EU are in the process of finalising a data transfer deal.

South Korea, too, is considering implementing new privacy rules, while

Israel has revised requirements for disclosures of data breaches.

Background

Vast amounts of personal data collected by private companies and state agencies, its flow across national jurisdictions and absence of a data protection legal framework in India have caused deep concern for long. This has been even more so because, in many cases, individuals whose data have been used and processed are oblivious to the purpose for which these are being harnessed.

For example, it was reported that UK-based political consulting firm Cambridge Analytica harvested profiles of up to 50 million Facebook users without their approval during the last US elections. Facebook chief Mark